

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Havumaki	Team: Team # 7	CCRB Case #: 200902671	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/21/2009 4:45 PM	Location of Incident: § 87(2)(b) Avenue	Precinct: 77	18 Mo. SOL 8/21/2010	EO SOL 8/21/2010	
Date/Time CV Reported Sat, 02/21/2009 5:20 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 02/21/2009 5:20 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alex Viera	14168	945080	077 PCT
2. POF Claribel Aquino	14847	944327	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Claribel Aquino	Abuse: PO Claribel Aquino stopped § 87(2)(b)	
B.POM Alex Viera	Abuse: PO Alex Viera stopped § 87(2)(b)	
C.POM Alex Viera	Abuse: PO Alex Viera threatened to strip search § 87(2)(b)	
D.POM Alex Viera	Abuse: PO Alex Viera frisked § 87(2)(b)	

Synopsis

At approximately 4:45 PM on February 21, 2009, § 87(2)(b) was stopped by PO Alex Viera and PO Claribel Aquino outside of § 87(2)(b) Avenue in Brooklyn (Allegations A and B). Allegedly, PO Viera threatened to strip-search § 87(2)(b) when § 87(2)(b) refused to assent to a frisk (Allegation C), and then frisked § 87(2)(b) (Allegation D).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

On February 21, 2009, § 87(2)(b) a § 87(2)(b) resident of Brooklyn, called the Civilian Complaint Review Board and filed a complaint through the call-processing system [encl. 3A]. § 87(2)(b) was interviewed at the CCRB on May 4, 2009 [encl. 4A-C]. The following is a synopsis of his statement:

At approximately 4:39 PM on February 21, 2009, § 87(2)(b) (black male, 5'10" tall, 163 pounds, black hair, brown eyes) got off a bus at the intersection of § 87(2)(b) Avenue and § 87(2)(b) Street in Brooklyn, and walked up the block, to the corner of § 87(2)(b) Street and § 87(2)(b) Avenue. He saw an unidentified friend double-parked at this intersection, walked up to him, and the two had a brief conversation, which lasted less than one minute. § 87(2)(b) then continued up the street to a corner store at the intersection of § 87(2)(b) Avenue and § 87(2)(b) Avenue. § 87(2)(b) entered this store, saw a couple of unidentified male friends, and spoke with them. He bought a tea, too. After a short while, § 87(2)(b) exited this shop with one of these friends.

As he exited, § 87(2)(b) saw two police officers standing to his left. They were identified by the CCRB as PO Claribel Aquino and PO Alex Viera. § 87(2)(b) did not recognize either of these officers. He described PO Aquino as a Hispanic female who was about 4'7" tall, was petite, had black hair, and appeared to be about 24 years-old, and PO Viera as a Mexican male who was about 5'8" tall, had a medium build, and appeared to be about 27 years-old. Both officers were in uniform, and PO Aquino wore a hat.

PO Aquino said something to § 87(2)(b) but he did not reply. She then tapped § 87(2)(b) on his arm, and he turned around. § 87(2)(b)'s friend continued walking. PO Aquino asked § 87(2)(b) whether he had heard her calling. He replied that he had not. She asked for his identification. § 87(2)(b) asked her why she wanted to see it. She replied that the area that they were in was drug and crime prone. PO Viera then asked, "Are you going to show ID or what?" § 87(2)(b) presented his identification. PO Aquino took it, then stepped back, and got on her radio, presumably to check § 87(2)(b)'s record. PO Viera asked § 87(2)(b) whether he had any weapons or drugs on his person. § 87(2)(b) replied by asking PO Viera why he had stopped him. PO Viera then stated, "You can cooperate, or we can take this further." He asked § 87(2)(b) if he could pat him down. § 87(2)(b) refused. PO Viera replied, "Either you let me pat you here, or I can take you to the precinct and strip-search you."

§ 87(2)(b) lifted his arms to chest level, and PO Viera patted him down. § 87(2)(b) was wearing a three-quarters length light cotton jacket. PO Viera did not enter any of § 87(2)(b)'s pockets. § 87(2)(b) and PO Viera spoke for a bit. At a certain point, § 87(2)(b)'s identification was returned to him. PO Viera informed § 87(2)(b) that he could issue him a ticket for obstructing a pedestrian walkway. § 87(2)(b) commented, at the CCRB, that the sidewalk had not been crowded, and that he had never stopped on the sidewalk of his own accord, only in response to being stopped. § 87(2)(b) then voluntarily gave PO Aquino his identification, and said, "You can write me the ticket." PO Viera issued § 87(2)(b) a summons. Then, PO Viera and PO Aquino walked away toward the Albany Houses New York City Housing Authority development.

Results of Investigation

Civilian Witness Statements

§ 87(2)(b) told the CCRB that an employee of the corner store that is located adjacent to the place where § 87(2)(b) was stopped witnessed this incident. Though § 87(2)(b) could not identify this individual,

he described him as a § 87(2)(b) male of Arab descent, and stated that he would attempt to secure contact information for this individual. § 87(2)(b) was not able to identify any other witnesses to this incident. On May 8, 2009, the undersigned investigator called § 87(2)(b) who reported that he had attempted to speak with the potential witness, but that this individual was not adequately proficient with English to provide a statement to the CCRB. § 87(2)(b) was not able to provide any contact information for this male.

On June 19, 2009, the undersigned investigator went to the corner store in question – § 87(2)(b) – located at § 87(2)(b) Avenue in Brooklyn, and spoke with a middle-aged male who was tending the register. He indicated that he had no recollection of this incident [encl. 16A-E].

Police Officer Statements

The CCRB identified PO Alex Viera from the summons that he issued to § 87(2)(b) [encl. 6A]. At his formal CCRB interview on May 29, 2009, PO Viera reported that he worked with PO Claribel Aquino on the date of this incident. The roll call [encl. 12A-H], as well as PO Aquino's testimony to the CCRB [11A-B], confirmed that she worked with PO Viera on February 21, 2009.

Overview

On February 21, 2008, PO Alex Viera and PO Claribel Aquino were assigned to footpost '10' from 3:00 PM until 11:35 PM. They worked exclusively on foot, and wore uniforms.

PO Alex Viera

PO Alex Viera, a § 87(2)(b)-old police officer who is currently assigned to the 77th Precinct, was interviewed at the CCRB on May 29, 2009 [encl. 8A-B]. The following is a synopsis of his statements:

Summons

PO Viera issued § 87(2)(b) a summons § 87(2)(a) 160.50

Memobook

PO Viera recorded that he stopped § 87(2)(b) at 4:45 PM on February 21, 2009 in front of § 87(2)(b) Avenue, because he had observed § 87(2)(b) in the middle of the sidewalk, screaming and yelling. PO Viera noted that he had asked § 87(2)(b) to move, but § 87(2)(b) had refused. § 87(2)(b) offered to be summonsed, and at 4:55 PM, PO Viera issued § 87(2)(b) a criminal summons for § 87(2)(a) 160.50 [encl. 7A-C].

Formal CCRB Statement

PO Viera (Hispanic male, 5'8" tall, 180 pounds, black hair, black eyes) reported that he did not remember this incident. He was shown a photograph of § 87(2)(b) and a photocopy of the summons that he issued to § 87(2)(b) but maintained that he did not recall anything about this incident.

PO Viera provided general information about the tasks of his February 21, 2009 tour. He explained that on this date, he and his partner, PO Aquino, were conducting "directed patrols" in the vicinity of § 87(2)(b) Avenue. This being a drug-prone location, PO Viera and PO Aquino visited stores, which he explained are hotbeds of drug-activity, and surveyed community opinion about the police presence in this neighborhood. PO Viera and PO Aquino even visited the bodega at § 87(2)(b) Avenue.

PO Claribel Aquino

PO Claribel Aquino, a § 87(2)(b)-old police officer who is currently assigned to the 77th Precinct, was interviewed at the CCRB on June 17, 2009 [encl. 12A-H]. The following is a synopsis of her statements:

Stop, Question, and Frisk Report

PO Aquino prepared a Stop, Question, and Frisk report for this encounter. She reported that she had observed § 87(2)(b) for 7 minutes before stopping him at 4:45 on February 21, 2009. PO Aquino had suspected § 87(2)(b) of criminal sale of a controlled substance on the basis of the fact that § 87(2)(b)'s actions suggested that he was acting as a lookout, and because § 87(2)(b) made furtive movements. Additionally, PO Aquino noted that her suspicion was elevated by the high incidence of

Conclusions and Recommendations

Undisputed and Disputed Facts

It is not in dispute that § 87(2)(b) was stopped. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Assessment of Evidence

At approximately 4:45 PM on February 21, 2009, § 87(2)(b) was stopped outside of § 87(2)(b) Avenue in Brooklyn. Though neither PO Aquino nor PO Viera reported any recollection of this incident, there is substantial police documentation indicating that it occurred, and that it took the form of a forcible stop. Both PO Viera and PO Aquino documented the encounter as a stop, with PO Aquino preparing memobook entries and a Stop, Question, and Frisk report, and PO Viera making a memobook entry for it. PO Viera also issued § 87(2)(b) a summons.

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

Allegation A: Abuse of Authority: PO Claribel Aquino stopped § 87(2)(b)

Allegation B: Abuse of Authority: PO Alex Viera stopped § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C: Abuse of Authority: PO Alex Viera threatened to strip search § 87(2)(b)

Allegation D: Abuse of Authority: PO Alex Viera frisked § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: